

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

EMILY HSI,
Petitioner

VS.

HUNGYU HENRY LIN,
Respondent

) Case Number: FDI-24-799732

) Hearing Date: April 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Emily Hsi (Mother) and Respondent Hungyu "Henry" Lin (Father) have two minor children together, Chloe (DOB 7/20/2021, age 4) and Ethan (DOB 5/28/2023, age 2). They have joint legal and joint physical custody of the children.
- 2) In a Findings and Order After Hearing filed 1/5/2026 (after a hearing on 11/18/2025), the Court stated it had "reviewed the extensive pleadings and submissions in this action and is concerned by the unnecessary complexity of past stipulations and orders." The Court set forth a parenting time schedule for the parties which, commencing January 2026, gives Father two, single overnights during Week A and a total of four overnights (1 overnight + 3 overnights) with the children during Week B, plus various holidays. The Court set a review hearing for 4/21/2026, issued non-disparagement and other conduct orders, and stated that "if the parents are on track and conflict has been reduced, the Court envisions placing the parties on a 2-2-3 schedule at the review hearing." The Court ordered the parties to file and serve update declarations, no longer than 5 pages, at least 10 days before the review hearing.

1 3) On 4/10/2026, Mother filed a declaration in which she states she is not opposed to modifying the
2 parenting time schedule "per se," but that a "modified 2-2-5" would better serve the children's
3 developmental interests and would also reduce conflict between the parties. Under her proposed
4 schedule, the children would follow a 2-2-5 schedule but would also have time with the other
5 parent during the 5-day weekend period (with Mother every Sunday from 4:30pm to 7pm and
6 with Father every Friday from 4:30pm to 7pm) so that "neither child goes more than [2.5] days
7 without seeing either parent." Mother states that in requesting this schedule, she conferred with
8 her "mental health professionals"--her parenting coach and her consulting expert. She notes that
9 her parenting coach also consulted with Father's parenting coach. She believes that with each
10 parent having time with the children on set days during the week ("Monday/Tuesday Dad" and
11 "Wednesday/Thursday Mom") would be reliable, consistent, and stable for the children. She
12 states that she would have submitted declarations from these professionals but did not do so
13 because of the Court's "strict 5-page limit with no exhibits/attachments" for update declarations,
14 but that she is prepared to obtain and submit a declaration from the mental health professional(s)
15 if the Court deems it helpful.

16 4) On 4/10/2026, Father filed a declaration in which he requests "a 2-2-3, consistent with Judge
17 [C]ostin's guidance" in the 1/5/2026 FOAH. He states that a "2-2-3 caps separation at three days--
18 the recognized developmental limit for preschool-aged children--provides equal access to both
19 parents across weekdays and weekends, and is an incremental step from the current arrangement,
20 with all exchanges at school." Father states that Emily's proposed "modified 2-2-5" would require
21 a 5-day separation, which is developmentally inappropriate. He also believes that the brief dinner
22 visits Mother proposes are "more disruptive than reassuring" and should not be ordered for
23 "parties with a documented history of gatekeeping." Father states that Mother has a history of
24 withholding the children with claims against him that have since been disproven, and that
25 Mother's proposed schedule "is not structured around the children's needs," but rather, "is
26 structured to ensure she retains the children on every activity day, preserving unilateral control
27 over enrollment decisions." Father has submitted a declaration from Robert L. Kaufman, Ph.D., in
28 which Dr. Kaufman explains why Mother's proposed "modified 2-2-5" schedule would be
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1 "unsettling" for the children and "would perpetuate the already problematic co-parenting
2 relationship."

- 3 5) Father has filed an objection and motion to strike the statements of Mother and her attorney
4 regarding why the mental health professionals (Mother's parenting coach and consulting expert)
5 believe the modified 2-2-5 schedule is better for the children and the parties. He states that
6 sanctions under Family Code section 271 are appropriate.

7 **B. Findings and Orders**

- 8 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
9 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
10 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
11 children is the United States.
- 12 2) The Court finds it is in the children's best interest to maintain the current order for joint legal
13 custody and to modify physical custody to a 2-2-3 parenting time schedule commencing
14 4/24/2026. The Court has considered both parties' personal opinions as to why they believe their
15 proposed parenting time schedule is better and finds that a 2-2-3 schedule is age appropriate,
16 ensures frequent and continuing contact, is straightforward, and is likely to minimize conflict
17 between the parties. The Court understands Mother's preference for the parties to have set days of
18 the week every week and will consider a 2-2-5 or other schedule in the future, if/when further
19 modification becomes necessary or appropriate.
- 20 3) In reaching its decision, the Court has not considered the professional opinions presented by
21 either party. Rather, the Court has considered the history of this case as set forth in the case file
22 and, as stated, the parties' opinions as to what they believe is best for their children. Father's
23 motion to strike Mother's and her attorney's statements regarding the mental health professionals
24 is granted. Father's request for sanctions is denied.
- 25 4) Father's attorney shall prepare the Findings and Order After Hearing.
- 26 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
27 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
28 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
29 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the

1 proposed order after hearing directly to the court. Failure to submit the order after hearing within
2 10 days may allow the other party to prepare a proposed order and submit it to the court in
3 accordance with CA Rules of Court, Rule 5.125(d).
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